

ONTARIO COURT OF JUSTICE

(College Park – Toronto)

B E T W E E N :

HER MAJESTY THE QUEEN

— AND —

**VALENTIN SOKOLOV
and
ERSUIN XHAFERI**

**C. Jenkins
for the Crown**

**G. Grill
for the Defendant Sokolov
and
M. Silver
for the Defendant Xhaferi**

**HEARD: March 11 and 12,
April 24 and 25, August 11, 12,
13, 14 and 15, 2008 and
January 19, 2009**

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REASONS FOR JUDGEMENT

Green, J.:

A. INTRODUCTION

- [1] Kevin Brown was the victim of a brutal attack by several young men on August 4, 2007. The consequences are indisputably tragic. Among other trauma, Brown suffered severe brain injuries requiring immediate surgical intervention. He spent six weeks in the hospital. He has since been undergoing rehabilitative therapy in an effort to remedy at least some of the neurological deficits resulting from his injuries.
- [2] The defendants, Valentin Sokolov and Ersuin Xhaferi, were part of a group of young men who had been drinking at a bar, the Rose and Crown, on Yonge north of Eglinton in Toronto on August 4th. An altercation with management and security personnel developed on leaving the bar. Some members of the group then became involved in further incidents on Yonge Street. At least some members of the same group participated in the grievous assault on the complainant Brown a short time later. The entire group fled after this assault and only two of its members – the two defendants before the court – were subsequently arrested. Both are charged with aggravated assault respecting the attack on Brown. An earlier exchange with one of the Rose and Crown bartenders, Richard Tenaglia, resulted in one of the defendants, Sokolov, also being charged with assault with a weapon.
- [3] The Crown and defence cases spanned nine days of evidence. Some twelve witnesses, five of whom were police officers, testified on behalf of

the Crown. The defendant Sokolov testified for the defence, as did one civilian witness. The defence position respecting the group attack on Brown, in short, is that the identification of the two defendants as among the perpetrators of the assault is mistaken; they concede they were present but assert they neither directly participated in the assault or aided or abetted the actual perpetrators. Sokolov's defence in regard to the charge of assault with a weapon is, in essence, an absence of the requisite intent.

- [4] As in all criminal cases, the burden of proof rests on the Crown. There can be no finding of guilt unless the Crown establishes beyond reasonable doubt each essential element of both offences and that each defendant was a party, as principal or accessory, to the offences with which they are charged. As the evidence of many of the witnesses is materially inconsistent, a fair adjudication requires an assessment of the credit-worthiness of each and, as one defendant has testified, an application of *R. v. W.(D)*., a matter to which I shall inevitably return.

B. EVIDENCE

(a) Introduction

- [5] The evidence bearing on the early hours of August 4, 2007 can be recounted as a series of connected chapters. The first involves the events that occurred in the Rose and Crown. The next relates to those that transpired on the street after the bill was finally settled at the bar, including a physical confrontation said to amount to an assault by the defendant Sokolov. The third segment culminates in the assault on the complainant Brown by a group of young men and the subsequent flight of all of those involved with Brown, including the two defendants, once

Brown was rendered unconscious. The final chapter addresses the pursuit, apprehension and arrest of both defendants. I shall deal separately with the parallel narrative of the defendant Sokolov, whose account includes a back-story that preceded his and his colleagues' attendance at the Rose and Crown.

- [6] By way of introduction, it is also helpful to describe the physical venue and identify the cast of characters whose testimony affords the evidentiary platform for any judicial determination. As to the former, the entire chain of events leading up to and culminating in the aggravated assault occurred in the half-block stretching north of Roehampton Avenue on the east side of Yonge Street in central Toronto. The subsequent chase of the young men believed to have assaulted Brown extended east along Roehampton for a further half block or so. These events, including the arrest of the defendants, unfolded between midnight and 3:00 am on Saturday, August 4th, in the middle of a Caribana weekend. They were anchored, at their northern end, by the Rose and Crown and, to its immediate north, a late-hours bar called Six Degrees. A Solutions store is located south of the Rose and Crown, a Bell World retail outlet to its south and a Country Style coffee shop to the south of that, occupying the northeast corner of Roehampton and Yonge. A late-night hot dog stand sat at the curb in front of the Country Style. The distance from Six Degrees, the northerly extremity, to the corner of Roehampton and Yonge is almost 160 feet. A police-prepared sketch of the immediate geography, entered as Exhibit 21, is attached as Appendix A to these Reasons.
- [7] The witnesses can be conveniently divided into several groupings. The first are those men who worked, generally as bartenders or security, at

the two bars. These include Donovan Green, Arthur Kinney and Kami Levy of Six Degrees, and Richard Tenaglia and Stuart Kempston of the Rose and Crown. Some of these persons participated in the events at and in front of the Rose and Crown; all of them observed at least parts of the assault on Brown, the subsequent flight of his attackers and the apprehension or arrest of the two defendants. Dennis James, a friend of Kevin Brown, the severely injured complainant, testified as to the precursors to and dynamics of the aggravated assault, as did, to a more limited degree, Fahrnaz Fallhapur, the hot dog vendor who testified at the behest of the defence. Four police constables – Lou Whitfield, George Juri, John Tanner and Brooke Waite – attended the scene in response to a radio call at about 2:30 am and participated in various ways in the defendants' arrests and detention. A fifth officer, DC Irvin Albrecht, a member of the Forensic Division of the Toronto Police Service, took photos of the defendants following their arrest and seized various articles of clothing for forensic analysis. He also photographed and took measurements of the half-block along Yonge Street north of Roehampton.

- [8] Some forensic samples were collected by the police. Swabs taken from the bottom of the defendant Xhaferi's foot were identified as containing blood, but no DNA or other forensic evidence was generated that positively connects either defendant to the assault on Brown.
- [9] I begin, then, with the evidence of these witnesses. As I noted earlier, the account of the defendant Sokolov is detailed separately.

(b) The Non-Defendant Witnesses

(i) The Rose and Crown

1. Kempston's Account

- [10]** Stuart Kempston was tending bar at the Rose and Crown on August 4th. He was also the manager that evening. About 1:30 am a waitress reported she was having trouble getting a bill paid from a group at the back. The group then left but for one man who Kempston and Richard Tenaglia, another barkeep, were able to restrain. The man was in his early 20s and about 5 feet 8 inches tall; Kempston estimated he weighed 170 pounds and was the stockiest member of the group. He wore blue “Hawaiian” shorts with a flowery print and a white tank top and he had dark hair of medium length, shorter on the sides than the top. The man spoke with an Eastern European accent.
- [11]** The man kept on trying to push his way out of the bar. Kempston told him to call his friends for the money to pay the tab. He did, and a green Mercedes soon pulled up in front of the pub. Kempston told the man in Hawaiian shorts to call his friends and have them bring the money into the bar. Two of them soon entered the pub. One was about 5 feet 10 inches and the second taller. One of the two asked how much was owed and then collected the money from an ATM on the premises and paid the bill. Donovan Green, a member of the security staff at the Six Degrees bar next-door, entered as the man was at the ATM. Kempston says he assured Green that everything was fine. Somehow a very brief argument erupted between the three young white men and Green, a black man, in the foyer between the pub’s exterior and inner doors. The young men’s language included racial slurs, but Kempston could not say how many or which of the three men were uttering these obscenities. The argument degenerated into a shoving match on the landing outside the front door to the pub, and then descended onto the sidewalk where a larger melee

developed. Kempston himself was not pushed or hit at any time that evening. He lost sight of the transition from pub to street as he initially remained inside the pub to pay the waitress the money she was owed.

2. Tenaglia's Account

- [12]** Richard Tenaglia was bartending at the Rose and Crown on the night of August 3rd and early hours of the 4th. A waitress at the pub feared a group of young customers might stiff her for their unpaid tab. Tenaglia was told that four of the five young men had gone out for cigarettes and he undertook to ensure the bill was paid. The one remaining man was about 5 feet 10 inches tall with very short, dark hair and a dark complexion. He was wearing blue Hawaiian beach shorts bearing a pattern of palm trees or flowers. (In his near-contemporaneous statement to the police, which he adopted, Tenaglia added that the man also wore a white sleeveless undershirt and flip-flops.) Tenaglia confronted this man and explained that his friends had taken off as they were not in front of the pub. The man, who spoke with an accent, made several calls on his cellphone in a foreign language. He then told Tenaglia that he had to get the money from a car outside the pub. Tenaglia asked Stuart Kempston, his manager, to detain the man while he briefly stepped outside and confirmed that a green Mercedes was double-parked slightly north of the pub. There were four male occupants in the car. Kempston told the man in shorts that he couldn't leave until the bill was paid. No one, says Tenaglia, ever locked the doors to the Rose and Crown or held them closed from the inside.

- [13]** One of the Mercedes' occupants entered the pub. He was about 5 feet 8 to 10 inches tall with short, dark brown hair. He wore a grey t-shirt with some inscription and flip-flop sandals that revealed his toes. This second man, who Tenaglia identified as the defendant Xhaferi, inquired about the problem. He was irritated but not drunk. He spoke with his friend in a foreign language, withdrew money from an ATM in the pub and then threw \$60 on the bar saying, "Now it's paid".
- [14]** Tenaglia testified that Donovan Green, a bouncer at the Six Degrees bar next-door, walked in as the man identified as Xhaferi was leaving, getting cash at the ATM or placing the cash on the bar, depending on his various testimonial accounts. Tenaglia told Green that the tab had been paid. Somehow, Green and the man in Hawaiian shorts got into a verbal altercation during which the latter referred to Green as a "nigger". Tenaglia testified that the man in the Hawaiian shorts pushed and shoved Kempston and took a shot at Green in the foyer between the two sets of front doors, an allegation that appears nowhere in his statement to the police. Indeed, that statement, which Tenaglia agreed was accurately recorded, facially conveys the impression that Green first came into the Rose and Crown after the others had paid the bill and walked "outside". Confronted with this inconsistency, Tenaglia explained that by "outside" he meant outside the pub's inner front doors.
- [15]** At this point Green told the two patrons that it was time for them to leave. Green left first, followed by the two young men, followed in turn by Tenaglia and Kempston. They were greeted by a third member of the group as they descended the six steps in front of the pub. This third man was about five-and-a-half feet in height and had blonde or light brown hair and a beer bottle in his hand. (Other than this cameo appearance,

Tenaglia never saw the man with the beer bottle again.) Two other apparent members of the same group now joined the growing ruckus, hurling further insults and racial epithets at Green. One of these young men, as described by Tenaglia in his testimony, was about 5 foot 4 inches, with a muscular build and blonde hair. He too was wearing shorts. The fifth young man (who was omitted from Tenaglia's police statement inventory) was about 5 feet 5 inches with straight, mid-length darker hair and a "chubby" physique. In all, two or three of the five young men were wearing flip-flops.

3. Green's Account

- [16]** Donovan Green described himself as a security manager at the Six Degrees nightclub. He was standing at the front door of the club between midnight and 1:00 am when he heard a commotion at the adjacent Rose and Crown. The door appeared to be locked and two or three angry young men were trying to get in. The door was open by the time Green reached it and he walked into the pub, as did the two or three men who had been pulling on the handle. Inside, a couple of the Rose and Crown bouncers were holding back two or three young men or, as modified in cross-examination, perhaps only one man. One, wearing blue beach shorts and a tank top, was about 6 feet tall. He had medium length dark hair and was the tallest of the group of four or five men. A second, wearing a white t-shirt, was about 5 feet, 6 to 7 inches with blonde hair shaved at the back. Green himself is 6 feet and 260 pounds.
- [17]** Green found himself between the men restrained in the bar and the friends who had come to their rescue. Tenaglia told Green about the nature of the fracas. Green said, "Why not just pay your tab?" to the tall man in the beach shorts. The man tried to push him aside, bumping into

his chest – a detail he had not earlier told the police or the Crown. In direct examination, Green testified he told the man he couldn't leave until he paid his bill. In cross-examination he said he did not stop the man from leaving the Rose and Crown. The verbal exchange continued for about five minutes, ending when one of the shorter young men handed some cash to the Rose and Crown bartenders. Green and the five young men then moved outside while some of them, especially the tallest man, hurled racial epithets in his direction. Green says he was not angered by these insults. As they left the pub, Green noticed that one of the young men was wearing flip-flops.

- [18]** Green has two convictions for assault arising from the same transaction in February 2004. He received a 60-day conditional sentence and a period of probation. The offences arose while he was employed as a bouncer at a different establishment. Green testified that he had been acting in self-defence but had pled guilty and accepted the Crown's factual underpinnings because he did not believe he would win at trial. He had counsel at the time. Green also had a conviction for an assault in 1991 when he was in high school.

(ii) Yonge Street: In Front of the Rose and Crown

1. Tenaglia's Account

- [19]** According to Tenaglia, the confrontation in front of the Rose and Crown quickly descended into a physical melee, with all of the young men but for the man with the beer bottle involved in a scuffle with Donovan Green. Tenaglia and Kempston, along with some bystanders, broke it up within a minute. The man with the beer bottle disappeared and the other four (two of whom had removed their shirts) walked 20 or 30 feet

south on Yonge. They stopped and, as a group, faced the crowd gathered in front of the Rose and Crown. The man Tenaglia identified as Xhaferi raised his fist and shouted, “I’m Albanian”. (Counsel agree that Xhaferi, who was 21 at the time of the incident, was born in Albania.) As Xhaferi and the man in the Hawaiian shorts continued shouting, the latter made a shooting gun gesture in the general direction of the crowd to his north while Xhaferi mimed a throat-slashing complimented by the words, “I know where you guys work”. There is no reference to these gestures or veiled threats in the statement Tenaglia provided the police soon after the events. They had “skipped [his] mind” until he began his testimony.

- [20]** Tenaglia caught sight of another young man associated with the same group. He was 5 feet 10 inches to 6 feet tall, with blonde streaks in his hair and a slender build, wearing a soccer-type shirt with markings. Tenaglia had not previously seen this man in the Rose and Crown nor was he one of the men involved in the altercation with Green in front of the pub. The man grabbed a heavy, six foot high wooden construction sign in a metal bracket and started walking north along Yonge Street while dragging the large sign under his arm. Tenaglia approached the man, stopped his progress and asked, “Where you going with that?” The man said nothing. However, as Tenaglia reached for the sign the man twisted away from his grasp striking Tenaglia in the shoulder with the sign. Tenaglia agreed that the man (who he identified in court as the defendant Sokolov) was trying to avoid having the sign taken from him, but he also believed Sokolov intentionally hit him with the sign. Sokolov never pushed the sign at Tenaglia, nor did he try to lift and strike him with it. Tenaglia also agreed that Sokolov’s twisting motion as he,

Tenaglia, grabbed for the sign was the only conduct giving rise to the physical contact said to ground an assault.

- [21]** In his original statement to the police Tenaglia said he had “grabbed the sign, at which point [the man] swung around and hit me with it”. Tenaglia agreed that that he was telling the police the truth at the time he provided this statement and that the mechanics of the incident involving the sign “might be one of those little details” he was having difficulty remembering. He ultimately conceded the possibility that he physically grabbed the sign before Sokolov responded by twisting away from his grasp. In any event, once Tenaglia took possession of the sign Sokolov simply turned and walked back to his friends. Tenaglia then deposited the sign in a construction area below the Rose and Crown. When he returned to street level the five men, including Sokolov, were walking south and the crowd to his north was dispersing. Tenaglia say he suffered a bruise to his shoulder but that it was nothing serious. He returned to work. He did not call the police.

2. Kempston’s Account

- [22]** A small melee greeted Kempston when he stepped out of the Rose and Crown. Donovan, he says, was defending himself from a number of assailants, throwing punches and kicks at the man in blue Hawaiian shorts and a couple of his friends, including the man who paid the bar tab. A crowd of about 25 to 30 spectators watched Green “having his way” with the others. Kempston removed a beer bottle from a man on the pub’s front steps and he and Tenaglia tried to restore order. Green’s dominance had turned the scene comical, almost like a “joke”. Finally, Green pushed the man in the Hawaiian shorts against a parked car, ending the altercation and provoking further laughter from passing

pedestrians and those standing in line at Six Degrees. Two men at a distance were repeatedly screaming, “Don’t fuck with us. We’re from Albania” during the altercation. The tallest and thinnest member of the group then swung a heavy construction sign at Tenaglia who blocked the swing with his right arm, removed the sign and threw it down a stairwell. Kempston could not be sure if the man with the sign had been in the Rose and Crown earlier. Nor could he say which of the two men walked into the other’s path although it appeared to Kempston that Tenaglia intended to stop the man from doing whatever he was going to do. The sign did not strike Tenaglia in the head, nor did Tenaglia appear agitated after the exchange. The crowd dispersed and Green returned to the Six Degrees nightclub. The entire fight lasted about ten minutes.

3. Green’s Account

- [23]** Donovan Green testified he returned to his usual station in front of Six Degrees on leaving the Rose and Crown. The two men Green said he had seen restrained in the pub – the tall man wearing Hawaiian shorts and the shorter blonde man – cursed and hurled racial epithets at him for several minutes as he stood at his post. Green testified that the shorter blonde man made a shooting gesture with two extended fingers of his right hand. Immediately after the events Green told the police that it was the tall man in the Hawaiian shorts who had made the shooting gesture. He could not explain the inconsistency. Meantime, said Green, another man picked up a construction sign and hit Tenaglia with it from behind: on the back of his head, as recounted in direct examination, or on his side or back, as he described the location of the blow in cross-examination. Tenaglia, according to Green, never reached for the sign and did nothing in response to being hit. He did not appear hurt and

returned to the Rose and Crown as the group of young men headed south on Yonge. In cross-examination, Green was no longer sure whether Tenaglia was hit from behind and could not recall whether Tenaglia grabbed for the sign.

- [24]** Green had provided statements to the police both on the night of the incident and the following day. His statements omitted any mention of the events in front of the Rose and Crown or of Tenaglia being hit with a sign. Nor did he mention these matters when he met with the officer-in-charge and the Crown counsel a week before he testified. He denied pushing, punching, hitting or being physical with anyone in the early hours of August 4th.

4. Kinney's Account

- [25]** Arthur Kinney is one of the owners of the Six Degrees nightclub. The club was hosting a Caribana party on the evening of August 3 - 4, 2007 and Kinney's job, in effect, was to oversee everything. At some point he received a radio call in his office about an incident involving the Rose and Crown. By the time he got outside things had cooled off considerably. Donovan Green was standing in front of the club's doors talking to some of the barkeeps from the pub next door and five young men were yelling at them from some distance as they headed south on Yonge. Kinney confirmed that Green's job description was that of "manager" and that security was not his primary responsibility.
- [26]** Kinney had once been convicted of assault. A subsequent charge of assault had later been withdrawn.

5. Levy's Account

- [27]** Kami Levy was part of Six Degrees' security staff. Around 1:00 am on August 4th he received a radio call from Green telling him to "come

outside". Levy and "Doug", another bouncer, immediately left the club. Green appeared to be in a confrontation with five angry young men who began to back off as Levy and Doug appeared. One of the young men was shouting racial slurs at Green. He was skinny, had short, scruffy black hair (about three to four inches in length), stood about 5 feet 8 inches tall and wore khaki-coloured (or perhaps grey) cargo shorts, a dark navy blue wife-beater and brown strap-over sandals that were open-toed. Levy could recall nothing about the man's face. This man looked like he wanted to fight Green. In direct examination Levy dock-identified this man as the defendant Xhaferi, although he said Xhaferi's hair in court was shorter than that of the man he observed on August 4th. In cross-examination Levy conceded that he could not "at all say for sure" that the defendant Xhaferi was the man he described in his evidence, only that among all of those sitting in court he, Xhaferi, "most closely resembles" him. Shown a police photo of the defendant Xhaferi taken within hours of the incident, Levy agreed that the man in the photo could not be the man shouting racial slurs who he had earlier described and purported to identify as Xhaferi.

- [28]** This man shouting racial obscenities was being held back by a second member of the group during the confrontation with Green. This second man, and the only other person Levy could describe, was a skinny 5 feet 9 inches with long blonde hair extending just past his ears. He wore a light blue polo shirt and denim jeans. He could not recall the man's footwear or what, if anything, the man said. Levy identified this second member of the group in court as the defendant Sokolov, noting that his hair was now darker and slightly shorter than when he observed him on August 4th. Levy returned to his duties in the club about five minutes

after he received Green's radio call. The young men were then in the vicinity of the hot dog stand, heading south on Yonge. One continued to hurl racial slurs at Green and another shouted, "We're Albanian". A third man, with blonde hair, had his arm over the shoulder of one of his companions, seemingly trying to persuade him to leave. Levy did not see any incident involving a street sign.

(iii) Yonge Street: Near Roehampton

1. Introduction

- [29] A Country Style coffee shop sits at the northeast corner of Yonge and Roehampton. Facing it, at the curb end of the sidewalk, is a late-night hot dog stand. Almost all of the witnesses who observed the procession of the five young men testified that they headed south on Yonge following the altercation with Donovan Green. They then turned left, or east, onto Roehampton. Soon after they returned to Yonge Street and, heading north, stopped to engage two young black men, Kevin Brown and his friend, Dennis James, who, according to most witnesses, were standing between the hot dog stand and the Country Style coffee shop.
- [30] The testimonial accounts of what followed consistently describe the vicious beating of Brown but are widely divergent as to the details of that assault. Several of these accounts describe the assault from vantage points in front of Six Degrees and the Rose and Crown and, in the case of Tenaglia, from a location directly across Yonge Street from these venues. The facial features of pedestrians in front of the Country Style coffee shop are, I find, extremely difficult to discern in police daytime photographs taken both from the sidewalk in front of these two clubs

and from the west side of Yonge Street immediately across the road from the Rose and Crown.

2. *Brown's Account*

- [31] Kevin Brown, who is black, was 27 at the time of the incident. He worked as a roofer in August 2007 and lived at home with his parents. He had no memory of the events of August 4th of that year. Indeed, his last pre-assault memory dates to June of 2007. His next was of waking up in the hospital some three months later, in September. He had never known Dennis James, his friend for 15 years, to carry a chain or any other weapon.

3. *James' Account*

- [32] Dennis James was 24 in August 2007. He too is black. He and Kevin Brown grew up together. As planned, they met up outside Six Degrees. James didn't meet the Six Degrees dress code and he and Brown discussed what to do next as they stood outside the club. About five men, all strangers, approached them. One, who appeared angry and somewhat intoxicated, was asking questions in a belligerent tone. The man had an empty beer bottle in the pocket of his shorts. He had dark hair, wore a bluish tank top, basketball style shorts to the knees and running shoes and stood about 5 feet 9 inches. (James provided a statement to an attending officer, PC Montis, very soon after the defendants' arrest. Although not completely free of confusion, James there described what appears to be this same man as having "long hair and a chin strap [and] wearing blue basketball shorts and a wife beater" and carrying a beer bottle. He also told Montis that this man "is the guy the police arrested". All counsel agree that James' words were accurately recorded at the time and James himself testified that his

statement was accurate, “the truth”, although he says he later remembered more about the events. James’ statement to Montis, entered as Exhibit 13 at trial, is attached as Appendix B to these Reasons.) James identified two of the other young men as the defendants Xhaferi and Sokolov. He initially volunteered that both were wearing jeans and shirts, but, when focussed on each defendant, he testified that he could not recall what either was wearing. A fourth man with slicked-back dark hair wore a maroon-coloured shirt and jeans. (In his statement to Montis, James added that the man was “really short” and also wore black boots.) James could remember nothing of a fifth man. All of the men were about his age and at least one of them wore flip-flops. Other than the short man (whose height he estimated as 5 feet 6 inches) and the man in blue shorts (at 5 feet 9 inches), they were all about 5 feet 11 inches to 6 feet tall.

- [33] Led by the man in blue shorts and tank top, the exchange grew more heated over the next several minutes. James says he tried to cool things down. He testified that one of the men used the word “nigger”, adding “We’re Albanian niggers and we run Toronto”. PC Jones’ notes of an interview with James the day after the event record James denying recall of any racial slurs at the time of the incident. James testified the officer either misheard him or was mistaken. He similarly denied saying the dynamic was “5 on 2”, as recorded by the officer. All counsel agree that Jones’ notes accurately record James’ comments at the time of the interview.
- [34] James says some of the other young men wanted to leave but the man in the blue shorts and the tank top said, “no, let’s stay here”. James certainly wanted to leave but the group formed a circle around him and

Brown. James said, “there’s no need for any problems”. The man in the blue shorts and tank top replied, “there’s going to be problems”. These events and the ensuing assault, says James, occurred directly in front of the Bell World store, which is just north of Country Style.

- [35] One of the men then punched Brown in the face as James started to back away. He identified that man in court as the defendant Sokolov, explaining that although his back was to the others as he retreated, he had just turned his head around to summon his friend when he saw the blow. Brown fell to the ground immediately after the punch. James says the man in the blue shorts and tank top then began to stomp Brown as he lay on the ground. All the others, beginning with the man he identified in court as Xhaferi, followed suit.
- [36] James tried to grab Xhaferi but then released him when, as detailed in cross-examination, Xhaferi exposed a knife which he swung at James. (In direct examination, James testified that Xhaferi flashed something sharp but indistinguishable in James’ direction as he ran by him while fleeing. In either case, James had not shared any information about a knife or any other sharp instrument during the course of his several earlier statements to and interviews with the police about these events.)
- [37] In his statement to PC Montis, James did not identify which of the men punched his friend Kevin Brown other than to distinguish him from the man – identified only as “the guy they arrested” – who, said James, repeatedly stomped on Brown’s head. There is no suggestion in James’ statement that more than one man was involved in the stomping. As if to clarify, James concluded his statement by saying “the one with the long hair was the one with the beer bottle and he did the stomping”. Confronted with his statement to PC Montis, James said he was mistaken

when he told Montis that the man with the beer bottle was one of those arrested. The man who did the stomping, he testified, was the man who had the knife and who was subsequently arrested – that is, the man he earlier dock-identified as Xhaferi. He also testified that all of the young men had participated in the stomping and that PC Montis had misquoted him. Many things, he says, were going through his mind and he was “not thinking clearly” when he provided his on-scene statement.

[38] In total, Brown was stomped about five or six times over the course of a couple of seconds (revised in cross-examination to about ten to twenty seconds) while James stood about 15 feet away. All five of the “Albanians” then ran south towards Roehampton as bouncers from Six Degrees began to descend from the north. He endeavoured to tend to his injured friend after his assailants fled. There was lots of blood and Brown appeared lifeless.

[39] James had been convicted of a possession of stolen property and failing to comply with the terms of his bail some four years earlier, when he was 20. He had since been arrested for robbery but he denied committing it and, as he put it, “the case got thrown out”. He denied using a weapon, chain or anything metal during the course of the altercation. He also denied punching or hitting anyone.

4. Green’s Account

[40] From his vantage point in front of Six Degrees, Donovan Green watched the group of young men engage a single black man in conversation in front of the hot dog stand just north of Roehampton. The young men surrounded the man and one punched him in the face. Green could not say which of the young men threw the single punch. The black man – undoubtedly Kevin Brown – immediately fell to the ground. According

to Green, each of the five men encircling Brown then stomped him a minimum of four and maybe five times in his head and chest areas. (He had estimated two to five times in his initial statement to the police.) One of these men was wearing flip-flops. Green and Kinney, who had been standing beside him, started running down Yonge within 20 to 30 seconds after the stomping started. The young men retreated south in the face of the bouncers' rescue efforts, and then east onto Roehampton, followed by Green and Kinney. Green estimated the distance between Six Degrees and the hot dog stand as approximately 120 feet and says it took him and Kinney about 20 seconds to traverse that distance. He agreed that there were other people in front of the hot dog stand but insisted he had a clear view of the stomping.

5. *Kinney's Account*

- [41] Kinney was about to walk back into Six Degrees when he saw the five young men return to Yonge Street. They stopped and argued for about a minute with a dark-skinned man at the hot dog stand, about 60 feet (perhaps further), from his vantage point in front of Six Degrees. Although he was too far away to hear the exchange, he inferred they were arguing from their actions, including his observation that they all had their hands in the air. The argument, chiefly between the dark-skinned man and a man in Hawaiian shorts, initially went "both ways". A second of the five young men intervened to get the others to stop their belligerence, standing in front of the man in Hawaiian shorts, extending his arms and trying to get his belligerent companion to leave. The man in Hawaiian shorts then became even more aggressive. He broke free of his colleague's efforts to restrain him and punched the dark-skinned man – Kevin Brown – in the face, knocking him out. Three of the young

men, including the man who threw the punch and the man who tried to stop the fight, then stomped or kicked the fallen man in his face between three and five times each.

[42] Kinney more fully described the punch-thrower as a stocky, 5 feet 10 inches tall man with short brown hair that was a little longer on top. He was wearing a white sleeveless tank top and long blue Hawaiian shorts. The second kicker, who Kinney believed was the man who initially tried to stop the altercation, was about 5 feet 5 inches, had a smaller build and wore a white sleeveless tank top and black open-toed flip-flops. The man also wore shorts that ended at his knees – not, he says, “Capri” pants. He too had brown hair of the same length as the first man – a few inches long on the top and shorter on the sides. Kinney confidently identified this man in court as the defendant Xhaferi, although he agreed in cross-examination that some of the facial features of Xhaferi in a police photo taken that same evening were materially different than those included in his description of this man. The third kicker was about 5 foot 10 inches tall with a thin build and light blonde, straight hair that extended below his ears but was short in back. He wore jeans and a long white t-shirt. Kinney identified this man as the defendant Sokolov.

[43] Kinney estimated that all three of these men were between 20 and 24 years of age. Other than being in the same age range and, like their colleagues, being white males and of apparent East European descent, Kinney was unable to describe the other two men. They were not involved in the kicking but stood behind and watched. Although other persons were walking in front of the hot dog stand, Brown appeared to be alone. Kinney described the artificial lighting as good, although he conceded he would have been able to see better had it been daytime.

Despite the pedestrian traffic, Kinney claimed he had a clear view of the altercation.

- [44] He and Green began running down Yonge Street towards the assault after the first few kicks. They got to within 20 feet of the five young men when the group ran south, turning east onto Roehampton as the pursuit continued.

6. Tenaglia's Account

- [45] Upon returning to the Rose and Crown Tenaglia says he was told by Kempston that he feared something further would happen. Curious, Tenaglia stepped outside the pub but his view down Yonge Street was obstructed by a structure in front of the Bell World building. He crossed Yonge and stood in front of a shop immediately across the street from the pub. Looking southwest Tenaglia saw the five young men talking with two black men at the southern end of the Bell World store. There was quite a bit of pedestrian traffic at the time and Tenaglia estimated he was about 60 feet away from the seven young men. (Police measurements place the distance at closer to 150 feet.) After about two to three minutes of apparently cordial conversation the man in the blue Hawaiian shorts lunged towards one of the black men and punched him in the face. A further punch followed and the black man – Kevin Brown – stumbled back, falling down just north of the corner. All five of the young white men viciously kicked Brown in the legs, head and chest as he lay on the sidewalk. This attack, says Tenaglia, lasted about seven or eight seconds. Despite the automobile and pedestrian traffic, the hot dog stand and cars parked on both sides of Yonge, Tenaglia was sure he could clearly see Brown throughout the assault. The young men ran south on Yonge and east on Roehampton as Tenaglia and a crowd of

others began to converge on the scene. Three of the five young men involved in the assault, says Tenaglia, were wearing flip-flops.

- [46] Tenaglia got to Brown's side within seven or eight seconds of his hitting the ground. He stayed with him until the police arrived. Brown's body was shaking and he had trouble breathing.

7. Kempston's Account

- [47] Stuart Kempston testified he was having a cigarette outside the Rose and Crown when he heard someone say, "Look at that!". Looking south he saw five (amended in cross-examination to four to seven) young men all brutally kicking a man on the ground, about 120 feet from where he was standing. He did not see the beginning of the altercation. In direct examination, Kinney testified the kickers included the man in Hawaiian shorts, the man who had struck Tenaglia with the sign, a tall skinny man (the tallest of the group) and two others. A number of them, including the tall skinny man, were wearing flip-flops. In cross-examination, Kinney identified the tall skinny man as the man who had swung the sign at Tenaglia; he could not "specifically" assign any other conduct to this man, nor could he "say for sure" that this man was one of those who had kicked Brown. He never saw this man again after the assault. Although his view was unobstructed, Kempston was too far away to see what any particular assailant did. He estimated the entire assault lasted about ten seconds.

- [48] Kempston did not know where Tenaglia was at the time of his initial observations. Within a second or two he started running in the direction of the assault. Others, including Kinney, Green and Tenaglia, were ahead of him. The young men sped down Yonge and onto Roehampton. Kempston stopped at the fallen black man, Kevin Brown, and called 911.

There was blood oozing from the Brown's eyes, ears and nose and he had trouble breathing. A man who appeared to be a friend of the man on the ground was very agitated. Kempston did not see this second man until after Brown's assailants had fled, and perhaps not until after he had completed his 911 call. Approximately ten seconds passed between the time the assault was first brought to Kempston's attention and the time he arrived at Brown's side.

8. Levy's Account

- [49] Levy had barely returned to Six Degrees when he received a frantic radio call from Green directing him to the front door. Once there he followed Doug, his fellow bouncer, south on Yonge and, ultimately, east onto Roehampton. Just north of Roehampton, about a meter in front of the hot dog stand, he saw a man lying on the sidewalk. He stopped to observe the man for a few seconds before resuming his pursuit. The man on the ground appeared lifeless: he was motionless, his eyes were closed and blood was coming out of his mouth. The hot dog vendor, a woman, and a few other persons, all black, were standing around the unconscious man. No one was tending to him. Levy did not see anyone running north on Yonge Street as he ran south from Six Degrees.

9. Fallhapur's Account

- [50] Farhnaz Fallhapur and her husband own and operate a hot dog stand situated on the sidewalk at 2323 Yonge Street. The stand sits in front of the Country Style coffee shop, 40 feet north of Roehampton and 117 feet south of Six Degrees. The donut shop closes at midnight. By contract, her business is required to maintain the stand in a fixed location, just

north of a curb-side municipal garbage can. The immediate area, said Fallhapur, is well lit. As it transpired, the assault on Brown occurred directly in front of the hot dog stand.

[51] Fallhapur and her husband were both working in the early hours of August 4th. It was a busy weekend, but not “very busy” between 2:00 and 2:30 am when a group approached the hot dog stand from the north (Fallhapur’s left). She estimated there were about 10 to 12, perhaps as many as 15, persons in the group. It appeared they were all hitting and fighting each other although she agreed it may only have been a core group. One of them, a black man, was knocked onto his back about 10 to 15 feet south (or to her right) from where Fallhapur was working. She did not see the fall or who knocked the man down. There were about five or six persons around the fallen man and she saw only three of them kick him while he lay on the ground. None of those involved in the kicking were black. She tried to intervene but was inadvertently pushed away by one of the kickers. Some of those involved in the group ran away when the man fell and others did so after the bouncers from the clubs to the north began to approach. It all happened, she said, in a matter of seconds. She saw no knives or other weapons, nor any blows delivered to the fallen man other than kicks. Nor did she see any of the assailants “bending down at all”.

[52] Fallhapur told the police that all three of the kickers were wearing closed shoes, not sandals. She affirmed this in her testimony. She recalled fearing at the time of the incident that the kickers’ closed shoes would amplify the impact of their blows. Fallhapur was unable to describe any of the kickers. She testified that she never saw any of those involved in the fight after they all fled, although she stayed at the hot dog

stand until morning. She paid attention to what was transpiring but it was a chaotic scene and she was very frightened.

(iv) The Pursuit, Apprehension and Arrests

- [53] James testified he screamed for bystanders to call 911 and then raced north on Yonge and into Six Degrees to alert Brown's cousin, Andre, about what had happened. James then ran back to check on Brown and then east on Roehampton to pursue Brown's assailants. He was barely half-way down the block when he heard the club bouncers say they had caught one of the suspects. James denied he had initially left Brown's side to discard a weapon.
- [54] Several members of the staffs of Six Degrees and the Rose and Crown pursued the fleeing men east on Roehampton. Only one of them, the defendant Sokolov, was apprehended. Green restrained Sokolov when he ran out of running room after clearing a fence. Sokolov initially tried to resist his captors but soon acquiesced to their directives. Kinney, who was outrun by a man wearing only one flip-flop then joined Green. Sokolov was bleeding from his head and had blood on his shirt. Both of the bouncers denied responsibility for Sokolov's injuries. Sokolov, says Kinney, repeatedly said he was Albanian. He and Green marched Sokolov back to the corner and then north on Yonge where they turned him over to police officers who were already attending the scene. Tenaglia, who was present, recognized Sokolov as the man who had who had struck him with the construction sign. Green testified that Sokolov was the first of those who kicked Brown once he was on the ground. Levy caught up with Green and Kinney on Roehampton as they held Sokolov. He recognized Sokolov as the blonde man who had earlier tried

to persuade one of his colleagues to leave. Sokolov, says Levy, said nothing and “wasn’t resisting at all”.

- [55] Sokolov was arrested for assault and placed in a police car. PC Tanner, who took custody of Sokolov, described him as a six feet 1 inch tall, 145 pound white man with dyed blonde hair who was wearing a white short-sleeve shirt with red markings, blue jeans and black dress shoes. (Police photographs of Sokolov taken at the scene confirm this description. Shot from front and back, they also demonstrate that Sokolov’s hair, while falling midway down his forehead, was cut short in back and ended above his ears on both sides.) Sokolov had blood on his shirt collar consistent with a cut he suffered to his head above his left ear. There was another cut to the middle finger of his left hand. Sokolov was eventually transported to Mt. Sinai Hospital where he required stitches to close both wounds.
- [56] A few minutes after Sokolov’s arrest the driver of a green Mercedes tried to execute a right hand turn from Roehampton north onto Yonge. Some of the bar staff recognized the Mercedes from the tab dispute at the Rose and Crown and its driver, the sole occupant of the vehicle, as one of the suspects. They notified the police and the car was pulled over. The driver, the defendant Xhaferi, was immediately arrested for aggravated assault. A beer bottle rested in the console cup-holder in the Mercedes.
- [57] Witnesses, including the police, noticed a single right-foot sandal on the sidewalk close to where Brown was lying. Police photographs of the crime scene record its presence in this location and close to a small pool of blood: a single, dark brownish-coloured sandal with straps that cross over the upper arch of the foot. A matching left-foot sandal was located by the police in the middle of Roehampton, about ten feet east of Yonge

Street. According to PC Whitfield, who arrested him, Xhaferi was “wound up”. He “demanded” the return of the sandal after being advised of his right to counsel and, again, after he was placed in a police cruiser. Whitfield described Xhaferi as 5 foot 6 to 7 inches tall, 160 to 170 pounds, medium build and wearing dark “Capri” “shorts” that extended below the knees. Police photographs show Xhaferi with an extremely short, buzz-like haircut. He is wearing calf-length Capri pants (ending closer to his ankles than his knees) of a brown or dark khaki colour with cargo pockets on the sides and, on top, a grey short-sleeve t-shirt sporting an “Am. Eagle” insignia. Although Whitfield claimed not to recall, his evidence makes clear that Xhaferi wore neither shoes or socks at the time of his apprehension by the police, consistent with the police photographs. Police photographs also confirm that there were some small red smudges, later identified as blood, on Xhaferi’s feet.

- [58] Kinney dock-identified Xhaferi as the man who had first tried to restrain the most aggressive member of the group and had then joined in kicking Brown after he had been knocked to the ground. In direct examination he described the man as wearing a tank top and shorts. According to Kinney and Green, the driver, on exiting the Mercedes, was wearing only one flip-flop. Kinney also testified the man was clothed in a different shirt than the white tank top he wore at the time of the assault on Brown. He had not mentioned the man’s change of clothing before testifying, either in his police statements or during his meeting with the Crown. Further, Kinney testified in direct examination that he recognized Xhaferi as the man he had been chasing earlier “because of his clothing and what he looked like”. Kinney repeated this in cross-examination, and then agreed that “the only [identifying] thing about

[the man's] clothing was the fact that he was wearing a flip-flop". He adhered to his identification of Xhaferi even when advised in cross-examination that Xhaferi had nothing on his feet when he left the Mercedes and wore long pants rather than shorts and even after conceding that the man he described bore features different from those appearing in a police photograph of Xhaferi taken that evening.

- [59] Kempston was one of those who pointed out the green Mercedes. He said he did not recognize the driver; indeed, he had never previously seen the man at the wheel. Accordingly, he could not say whether Xhaferi, the driver, had been involved in the assault on Brown. Kempston also saw Sokolov in police custody. Neither he nor Xhaferi was the tallest and skinniest of men he had earlier described as the man who had swung the sign at Tenaglia. Although he was only about ten to fifteen feet from them as they were arrested and then sat in police cruisers, Kempston claimed in re-examination that he had only looked at the two men for a "split second". He did not see any blood on either Sokolov or Xhaferi.
- [60] Kempston also says, in cross-examination, that Brown's friend (almost certainly Dennis James) was at Brown's side when he reached the fallen body (about ten seconds after his attention was first drawn to the assault) and remained with Brown until at least the arrival of the police, and that this friend did not pursue the assailants down Roehampton. In re-examination, Kempston allowed that he was not completely certain that Brown's friend was present when he, Kempston, first reached Brown, but that the friend was definitely there when he finished his 911 call a couple of minutes later.

- [61] Levy was a late member of the pursuit east on Roehampton. He followed his colleague Doug to the south side of the street where Green and Kinney were already holding the man Levy identified as the defendant Sokolov. He did not see any injuries on this man. Green instructed Levy to return immediately to Six Degrees as the security personnel had all been involved in the chase. Levy did, taking a short-cut which bypassed the man lying on the sidewalk.
- [62] Xhaferi and Sokolov were closely observed by most of the Crown witnesses as they were arrested and then sat in police cruisers waiting for transport. Several of the witnesses were then being interviewed by the police. One of them, Dennis James, first saw Sokolov after the assault when he was returned by the bouncers and then turned over to the police. He first saw Xhaferi after the assault when he was under arrest and being placed in a police car. He pointed out Xhaferi as a participant in the assault on Brown but failed to mention that Xhaferi had pulled a knife on him during the assault. He told the police that “one of the guys” punched his friend Kevin Brown, but he did not identify which one, nor did he at any time before testifying point out the defendant Sokolov or tell the police that he was the man who had knocked Brown to the ground and then joined in kicking him. In court, as earlier noted, James attributed that blow to Sokolov and said he participated in the stomping.
- [63] A medical report summarizing Kevin Brown’s injuries indicates that he suffered “severe brain injury as well as facial bone fractures requiring surgical intervention”. These injuries were considered life-threatening on initial presentation. Three months after the assault Brown was experiencing post-traumatic seizures or epilepsy. Five months later, in

April 2008, his assessment included persistent cognitive dysfunction and continuing recent memory deficits.

(c) The Defendant Sokolov's Account

(i) The Back-Story

- [64] Valentin Sokolov was 20 in August 2007. He emigrated to Canada from Bulgaria with his parents when he was 11 or 12. Sokolov left school after grade 11 and worked since then for his father's general construction company. He has no criminal record and denied ever being arrested, in trouble with the police or being in a fight. He initially denied any recall of a police investigation at a Skye Vodka-sponsored event he attended at the Taste of the Danforth festival in August 2005. His memory was refreshed upon hearing a police synopsis of the incident, but Sokolov denied all allegations of assaultive behaviour, intoxication, misidentification or being taken down by the police. Nor does any other evidence lend credence to these allegations.
- [65] Other than Bulgarian, the only language Sokolov speaks is English. More to the point, he does not speak Albanian and has only one Albanian friend: his co-defendant Ersuin ("Ersi") Xhaferi who, all counsel agree, was born in Albania in June 1986. Sokolov and Xhaferi had been friends for four or five years prior to their arrests but, as a result of their bail conditions, had not spoken since their release.
- [66] Sokolov joined his friend Solomon at a restaurant for a beer and nachos between 7:00 and 8:00 pm on August 3, 2007. Although he had worked with Solomon and known him for about six to eight months prior to August 3rd, Sokolov testified he did not know Solomon's last name. He called Xhaferi on his cell around 10:00 pm, when Solomon headed home, and agreed to meet him at Logan and Gowan. Xhaferi was drinking beer

on Logan with about nine or ten others next to a park. Sokolov had never previously met any of them. He believes some were speaking Albanian and others Russian, a language that sounds similar to Bulgarian, but he was unable to effectively communicate with any of Xhaferi's acquaintances. Sokolov says he had nothing to drink on Logan but agreed to accompany Xhaferi and the others to a bar. He and three other members of the group accompanied Xhaferi in Xhaferi's Mercedes. Sokolov could not recall any of their names but they were the same men who were with him and Xhaferi at the time Brown was assaulted.

- [67] Sokolov believed the other three were all of Albanian origin as they and Xhaferi spoke together in a common language in the car. One of the young men was about 19 or 20, muscular with short dark hair and stood about 5 feet 11 inches to 6 feet. He wore a white tank top and blue shorts. The second man was 5 feet 8 inches, about Xhaferi's height, and of medium build. He too wore a white tank top, although it had more material in the shoulder area than the thin-straps version worn by the first man. The third man was the same height or perhaps a bit shorter than the second. He had blonde hair. Sokolov could not recall the third man's clothing or the footwear worn by any of the three men or what Xhaferi was wearing other than a t-shirt. Sokolov himself stood 5 feet 11 inches and weighed 126 pounds in August 2007. He had blonde highlights in his hair at that time.

(ii) The Rose and Crown

- [68] Sokolov, Xhaferi and the three other men drove to a parking lot east of Yonge on Roehampton. The rest of group from Logan joined them there. They all walked north on Yonge Street and settled into the back of the

Rose and Crown, a bar Sokolov had never previously patronized. The group ordered a total of three or four pitchers of beer which they consumed with chips over the next hour or so. Sokolov, who had left his father's car on Logan, recognized he was not fit to drive although, in his own estimation, he was not drunk. On leaving, the first of the three men (the man in the tank top and blue shorts) said he would take care of the bill. Sokolov thanked him and left, sometime before 2:00 am, along with all the others. He and Xhaferi had almost returned to the car when Xhaferi's cellphone rang. As explained to him by Xhaferi, the man left at the bar had some problem settling the bill and he, Xhaferi, told him he'd take of it. The four young men then drove back to the Rose and Crown in Xhaferi's car. Xhaferi, says Sokolov, parked the car at the curb and then went into the pub to settle the bill. Sokolov and the other two young men waited in the car.

(iii) Yonge Street: In Front of the Rose and Crown

- [69] A few minutes later Sokolov's attention was drawn to a commotion at the front of the pub. All three exited the Mercedes to investigate. They were on the sidewalk when Sokolov saw the front door open and Donovan Green grab the man in blue shorts and push him down the stairs. Green then came down the stairs and punched one of Sokolov's companions in the chest, knocking him into a parked car. Sokolov grew frightened and headed south on Yonge. From there he saw Xhaferi on the sidewalk just north of the pub and Green theatrically throwing martial art kicks and punches before an amused crowd. No one, says Sokolov, tried to hit Green. Everyone was laughing at Green's antics, including Sokolov.

- [70] Wanting to join the fun, Sokolov grabbed a large construction sign and started to drag it north under his arm. His intention, he says, was to present it to Green as a target: “Here, kick this”. Someone seized the sign from behind. He turned his head and saw the man he now knows as Tenaglia saying, “Where are going with that?”. Tenaglia removed the sign from Sokolov’s hands and threw it away. Sokolov said nothing. He did not know whether the sign made contact with Tenaglia when he turned to respond to his interjection. He certainly, he says, had no intention of hitting anyone with the sign.
- [71] Sokolov did hear someone say “nigger” during the fracas in front of the Rose and Crown. He did not recognize Xhaferi’s voice but assumed the speaker was a member of the group with which he had arrived.

(iv) Yonge Street: Near Roehampton

- [72] Sokolov and his three new acquaintances walked south on Yonge Street. He assumed Xhaferi had taken the car and would meet them at the original parking spot. The man in blue shorts was very angry. He wanted to go back and confront Green. Sokolov counselled otherwise, put his arm over the man’s shoulder and edged him towards Roehampton and the car. The second man, also in a tank top, was carrying a beer bottle. Xhaferi joined them at the corner of Roehampton. He tried to dissuade the man in blue shorts from returning to the scene of his altercation with Green. The man ignored him and headed north, followed by the others, including Sokolov. He sensed there would be trouble, but he imagined the man in blue shorts would simply vent and then back off as Green was by far the larger of the two.

- [73] Sokolov was about 20 feet behind the leaders when he heard a “fuck you” exchange and ensuing argument between the man in the blue shorts and two black men in front of the Bell World store. The man in blue shorts was clearly angry and appeared aggressive. Xhaferi stepped between him and one of the black men, who Sokolov identified as Brown, and told both to back off. “Out of nowhere”, says Sokolov, the man holding the beer bottle sucker-punched Brown who fell to the sidewalk. Within a second the second black man, who Sokolov identified as James, surprised Sokolov with a hard punch to the left side of the back of his head. Sokolov says he fell to his knees, raised his hands, palms exposed, over his head to protect himself and absorbed a couple more blows to his hands and head. He says all of this occurred within a couple of seconds. He was bleeding and Xhaferi kept telling James to “Get off him”. Xhaferi then grabbed James and pushed him away. Sokolov says he never saw Brown kicked or anything else happen to him after he hit the ground. He denied hitting anyone the entire evening and says he never saw Xhaferi punch or kick anyone either.

(v) The Pursuit, Apprehension and Arrests

- [74] As he got to his feet Sokolov could see the bouncers from the clubs to the north, including Green, running south towards them as the other members of his group ran south. Frightened, Sokolov quickly followed his colleagues but he remained the last of the retreating group. He could feel the blood flowing from his head and ultimately required three or four staples to his head and stitches to his finger to close his wounds when the police took him to a hospital later that evening. He was caught by the bouncers behind a building on Roehampton where he had sought

refuge. He did not, he testified, say anything or struggle with the bouncers. The bouncers did not injure him. They walked him back to the scene of the assault where he was arrested and placed in a police cruiser.

C. ANALYSIS

(a) Introduction

- [75] The preceding detailed summary of the various witnesses' testimony is intended to convey a sense of the richness and complexity of the evidence bearing on the factual and legal issues that require resolution in this case. This review is also intended to graphically demonstrate the breadth and quality of the inconsistencies that punctuate nearly every witnesses' account. Few witnesses testified at this trial whose evidence in chief was not materially revised or substantially qualified in cross-examination or, in at least some instances, directly contradicted. In the case of several Crown witnesses, their evidence is inconsistent within their direct examination, when compared to their answers in cross and with statements they previously provided to the authorities. The inconsistencies between and among the witnesses are legion and, in the case of the defendant Sokolov's testimony, dramatically inconsistent – if often in different ways – with the core evidence of all the prosecution witnesses.
- [76] The occurrence of inconsistencies in the witnesses' accounts is hardly surprising. The events at issue were spontaneous, unanticipated, involved multiple strangers, occurred within an intense and concentrated time span, were fraught with verbal and physical violence and impacted traumatically on some of the participants. Further, the witnesses were asked to plumb their memories some eight to fifteen

months after the incident. Some conceded the erosion of time on their ability to recall. Others, it appeared, grew more confident in and convinced of their recollection, irrespective of its discordance with what may pass for empirical reality. The forensic concern here, in the case of almost all the witnesses, is not the risk of conscious dissembling but, rather, the reliability of their testimony. Put otherwise, the primary, if not exclusive, focus is not on witness honesty. It is, rather, on the impact of perception, interest and recall on the manufacture of testimonial narrative. This leads to the first of several preliminary legal considerations.

(b) Preliminary Legal Considerations

(i) Burden of Proof and Credibility

[77] As noted earlier, this case, as do most, requires an assessment of witness credibility. The defendant Valentin Sokolov testified at his trial. His evidence, on its face, affords a complete defence for both himself and, at least arguably, his friend and co-defendant, Ersuin Xhaferi. Applying the long-settled guidelines set out by the Supreme Court in *R. v. W.(D.)* (1991), 63 C.C.C. (3d) 397, I must acquit Sokolov if I believe his evidence or, even if I do not, if I am left in reasonable doubt by it. (See *R. v. Carson*, 2009 ONCA 157 for a recent re-affirmation of this articulation of the “second prong” of *W.(D.)*.) Even if Sokolov’s evidence does not leave me with a reasonable doubt, I must still acquit him if I am not convinced of his guilt beyond reasonable doubt by the evidence that I do accept. Xhaferi’s route to acquittal, if available, depends on there being a reasonable doubt as to his guilt as result of the evidence I do accept or the absence of sufficient evidence. As with all triers of fact, I may believe all, some or none of the evidence of any witness. This proposition

necessarily contemplates the possibility of different results for the two defendants and, in the case of Sokolov, different results respecting the two charges he faces.

- [78] Despite its prodigious legacy, there is no great magic in the *W.(D.)* formulation. As the Supreme Court recently observed, “Essentially, *W.(D.)* simply unpacks what reasonable doubt means in the context of evaluating conflicting testimonial accounts”: *R. v. J.H.S.* (2008), 231 C.C.C. (3d) 302, at para. 9. Or, as said by Abella J. for the majority in *R. v. C.L.Y.* (2008), 227 C.C.C. (3d) 129 (S.C.C.), at para. 8, the “purpose” of *W.(D.)* is “to ensure that triers of fact – judges or juries – understand that the verdict should not be based on a choice between the accused’s and the Crown’s evidence, but on whether, based on the whole of the evidence, they are left with a reasonable doubt as to the accused’s guilt”. The focus, in short, must remain fixed on the standard of reasonable doubt. Where, however, as here, a defendant has testified his evidence cannot be assessed in a vacuum. (See, also, *R. v. Newton*, 2006 CanLII 7733, at para. 5; *R. v. Hull*, 2006 CanLII 26572 (Ont. CA), at para. 5; *R. v. J.J.R.D.*, 2006 CanLII 40088 (Ont. C.A); *R. v. Ratray*, 2007 OCCA 164; and *R. v. Snider* [2006] O.J. 879, at para. 37.)

(ii) Identification Evidence

- [79] The Crown’s case, at least in regard to the aggravated assault charge, turns largely on identification evidence. The reliability of such evidence is notoriously suspect where, as here, the purported identification is of strangers or unfamiliar. By way of one infamous example, at least four eyewitnesses (including one who claimed to have physically grappled with the suspect) positively, repeatedly and increasingly confidently

identified one Thomas Sophonow as the man seen fleeing from the brutal killing of an adolescent in Winnipeg in late-1981. Based largely on this evidence, Sophonow was twice convicted of the offence of murder and twice sentenced to life imprisonment. In the year 2000, nearly two decades later, Sophonow was completely exonerated: every one of the witnesses had been grievously mistaken. (See <http://www.gov.mb.ca/justice/publications/sophonow/toc.html>.)

[80] Eyewitness misidentification is probably the greatest single cause of factually wrongful convictions. As the Court of Appeal noted in *R. v. Quercia* (1990), 60 C.C.C. (3d) 380, at 389, "The spectre of erroneous convictions based on honest and convincing but mistaken eyewitness identification haunts the criminal law". Its inherent frailties demand that special care must be taken in the assessment of such evidence. Such care, however, does not translate into a rule of exclusion or complete probative negation. It is most certainly not the rule that eyewitness identification evidence – even standing alone – can never ground a proper conviction. The rule, rather, is that the exercise of adjudication in this type of case must be especially cautious. (See, e.g., *R. v. Trochym*, [2007] SCJ No. 6, at para. 46; *R. v. Burke*, [1996] SCJ No. 27, at para. 52; *R. v. Spatola*, [1970] 3 O.R. 74, at 82 (C.A.); *R. v. Miaponoose* (1996), 110 C.C.C. (3d) 445, at 450-1 (Ont. C.A.); *R. v. Tat and Long* (1997), 117 C.C.C. (3d) 481, at 516 (Ont. C.A.); and *R. v. F.A.*, [2004] OJ No. 1119, at para. 39 (C.A.).)

[81] The Crown's case here is dependent on eyewitness identification evidence, but not in the sense that ordinarily attracts the critical concern of jurists and scholarly commentators. While the defendants and the Crown witnesses were unfamiliar to each other, most of the

identification evidence is premised on more than the momentary sightings that are the subject of much jurisprudential attention. For most Crown witnesses, there were several opportunities to view the defendants and their companions in conspicuous circumstances over the course, although fractured, of about 30 to 60 minutes. While the exact circumstances of these opportunities gives rise to their own reliability concerns, the observational window afforded the Crown witnesses does not equate to that of the notorious “fleeting glance”

- [82]** Most importantly, the core identification issue is not whether each of the two defendants were among the men present at the site of the assault on Kevin Brown and during the precursors to that attack. That question, if ever viable, was put to rest when Sokolov testified and unequivocally placed himself and Xhaferi in the midst of these events. The question, rather, is whether the identification by the Crown witnesses of the defendants as the perpetrators of or accomplices to the assault on Brown is sufficiently reliable to meet the prosecutorial burden. Put somewhat differently, the factual issue is not the presence of Sokolov and Xhaferi but what each individually did or did not do. Was Sokolov the man who, as some witnesses attest, punched Brown in the face? Did he and/or Xhaferi participate directly in kicking Brown once he was knocked to the sidewalk? Did either of them endeavour to stop the pending violence? Was either defendant one of those young men, if any, who stood watching the assault and, if so, what was their role in that regard? The answer to these and other critical questions of fact still turns on the quality and consistency of the identification evidence, but it is of a different, if even more challenging, order.

(c) Assault With a Weapon

- [83] One area where identification evidence is of no real moment is with respect to the allegation that the defendant Sokolov assaulted Richard Tenaglia with a weapon – the construction sign Sokolov was dragging up Yonge Street during the incident in front of the Rose and Crown. Sokolov testified, as did several Crown witnesses, that he was the man with the sign and that the sign made contact with Tenaglia during their brief exchange. The only real issue is whether the Crown has established beyond reasonable doubt that the contact was intentional, in which case Sokolov is guilty of this offence of assault with a weapon.
- [84] Sokolov’s account, in brief rehearsal, is that the fracas in front of the pub had become comical. Wanting to add to the entertainment, he dragged the heavy sign north to offer it as a target to Donovan Green, the Six Degrees bouncer who was by then delighting a crowd with his nifty martial arts-like moves. To his surprise, Tenaglia interrupted his progress and seized the sign. Sokolov doesn’t know if the sign made contact with Tenaglia. In any event, that was never his intention. Once separated from the sign, Sokolov turned and walked back south towards Roehampton.
- [85] Parts of this narrative are supported by the evidence of Crown witnesses, in particular Kempston, who testified that Green was “having his way” in the scuffle in front of the pub, that a crowd of spectators had formed to watch the events, and that Green’s physical dominance had turned the fracas into a joke. I accept Kempston’s evidence in this regard; there is simply no reason for him to recount these events in other than a truthful manner and there is no reason to doubt the reliability of these observations. Further, all the relevant witnesses

agree that the sign was so large and heavy that Sokolov was compelled to drag it up the street, and that Sokolov said and did nothing during or after the exchange with Tenaglia other than retreating once the sign was seized from him. Kempston and Green both recall that Sokolov struck Tenaglia with the sign, but their evidence in this regard is inconsistent not only with Sokolov's but, as well, with each other's and, most importantly, with that of Tenaglia, the putative victim, who, while "believing" that the contact was intentional provides a considerably more benign account. Indeed, Tenaglia's evidence expressly allows for at least the possibility that that he manually grabbed the sign and that any physical contact he then suffered was in the context of Sokolov twisting to avoid having the sign removed from his grasp.

- [86]** I accept that some physical contact occurred. Given Tenaglia's account – along with the unlikely nature of the sign as a weapon of opportunity and the absence of any accompanying expression of hostility – I am inclined to view that contact as inadvertent, unthinkingly reactive or accidental. In any event, Sokolov's testimony, assessed in the context of the evidence of the Crown witnesses, leaves me with at least a reasonable doubt as to whether any application of force was intentional. Accordingly, Sokolov is found not guilty of this charge.

(d) Aggravated Assault

- [87]** The charge of aggravated assault is directed at both defendants. In assessing the voluminous evidence bearing on this count it is helpful to first set out the competing theories of the Crown and defence. To be clear, the Crown is not obliged to prove its "theory", only the essential elements of the offence and, to assure conviction of both Sokolov and

Xhaferi, that these elements are adequately satisfied with respect to each defendant. The defence, of course, is not obliged to prove anything. Nonetheless, the theories of Crown and defence assist in framing the issues and in identifying those factual hypotheses that requires adjudication.

- [88]** The theory of the Crown, put most succinctly, is that the defendants were part of a group of young men, some of whom were bested during the fracas in front of the Rose and Crown. They all retreated briefly to lick their wounds, re-grouped and, at the instigation of their most belligerent member, then advanced on the author of their public humiliation. Along the way they ran into two young men. One of them, the complainant Kevin Brown, became the victim of their transferred or continuing anger. Whether or not the two defendants initiated the attack, they participated in the ensuing aggravated assault either as co-perpetrators, by joining in kicking the downed man, or by supporting or encouraging their colleagues' violent conduct by surrounding Brown in a ring of intimidation. Either way, the defendants, says the Crown, are parties, as principals or accessories, to the offence of aggravated assault. While a dark shadow of racism lends a thread of continuity to the Crown theory, its proof is not essential to the theory's validation.
- [89]** The defence theory parts company with the Crown's at the point the group of young men began their return north on Yonge. While some members of the group may well have wanted to avenge their humiliation, neither Sokolov nor Xhaferi shared this agenda. They both tried unsuccessfully to restrain their companions and, in Sokolov's case, were rewarded by skull-puncturing blows to the head. Far from being

parties to any assault, the defendants were peacemakers who, ironically, were left holding the bag for their fugitive companions.

[90] The defence theory is borne almost exclusively by Sokolov's testimonial shoulders. His evidence was generally coherent, non-evasive and consistent in both direct and cross-examination. There were moments when he appeared combative – answering questions with questions, asking his interrogator what she would have done in like circumstances and expressing frustration with redundant lines of inquiry – but these displays of exasperation were not characteristic of the tenor of his testimony which, for the most part, was respectful and responsive. His evidence does, of course, conflict with that proffered through the Crown witnesses and, on occasion, the sole other defence witness. It also suffers certain intrinsic frailties when viewed by no more powerful a prism than common sense. For example, it is difficult to understand why Sokolov could not recall, despite introductions, the names of any of the nine or ten Albanian- and/or Russian-speaking men with whom he spent much of the evening of August 3rd and early August 4th. More perplexing still is his claim to not know the last name of his friend Solomon, a man with whom he worked and was acquainted for some six to eight months prior to the incident.

[91] More troubling still is Sokolov's evidence that, other than the first blow, he never saw any violence inflicted on Kevin Brown. To be clear, I have no difficulty finding that Brown was kicked or stomped repeatedly after being knocked to the ground. The immediate observations of Brown's condition, the medical reports and the core consistency of the Crown witnesses and Fallhapur all confirm such attack. Irrespective of any defensive posture he may have assumed, it is difficult to credit Sokolov's

claim to complete ignorance of this vicious assault. His evidence as to how he sustained the injuries to his head and fingers is also troubling. On Sokolov's account, he was blind-sided by Dennis James, fell to his knees and absorbed repeated blows to the top of his head while he tried to protect it with his hands. James, of course, denied striking Sokolov. Five other witnesses testified as to their recollections of the same narrow timeframe and streetscape. There was clearly some confusion and the critical events unfolded in a matter of seconds. Nonetheless, not one of these five witnesses noted a second fallen man – Sokolov, on his evidence alone – while Brown was being pummeled. Fallhapur, the hot dog vendor, was the only witness who was asked, even indirectly, about such possibility; she did not, she says, see anyone “bending down at all”.

[92] That said, there is no doubt that Sokolov did suffer nasty wounds to his head and fingers, consistent with his own account of the events. There is an admitted temptation to speculate that he sustained these injuries while endeavouring to escape from his pursuers but, as Crown counsel has fairly noted, she failed to put such suggestion to Sokolov in cross-examination and, as a result, rightly abjures any reliance on this possibility. Green and Kinney, who apprehended Sokolov, both denied assaulting him and neither advanced an alternative explanation for his bloody head and fingers. Sokolov's injuries thus remain a strong piece of potentially confirmatory evidence.

[93] The inconsistencies and improbabilities in Sokolov's account are more than matched by those that characterize the evidence of the various Crown witnesses. Levy, for example, unhesitatingly identified Xhaferi in court as the aggressive man shouting racial insults at Green outside the Rose and Crown. Confronted with a police photograph of Xhaferi taken

very soon after the events, he agreed that the man in the photo could not be the man he earlier described. Green insisted that the door to the Rose and Crown was locked or held closed from the inside as he approached it from the street. Staff inside the pub denied that anything of this sort ever occurred. Tenaglia says the man in Hawaiian shorts pushed and shoved Kempston as he made his way out of the pub. Kempston, on the other hand, says he was never pushed or hit throughout the entire evening. James testified to the provocative racist comments made by the men who approached him and Brown on Yonge Street. Police notes of an interview with him the next day record James denying the occurrence of any racial slurs. Despite being the intended target, prior to his taking the stand James had also neglected to ever mention that Xhaferi swung a knife or other sharp instrument in his direction at any time. Similarly, Tenaglia never spoke of the threatening gestures he says were made during the fracas in front of the pub until he too began his testimony. Every other observer of these same events contradicts Green's assertion that he was not physical with anyone during the same altercation. The basis of Kinney's identification of Xhaferi as one of the early kickers is undermined by police descriptions and photographs of Xhaferi, and weakened further by his effort to reconcile the discrepancies by saying that Xhaferi had changed his clothes in the minutes between the assault and his arrest – a rather significant and, I find, most improbable observation that he neglected to disclose until under examination. This list is illustrative not exhaustive. It is intended only to provide some flavour of the evidentiary inconsistencies that characterize the testimony of the Crown witnesses.

[94] So, who did throw the first punch? Fallhapur and two of the six Crown witnesses who testified they observed the assault either missed the opening shot or were unable to make the call. Two others, Kinney and Tenaglia, fingered the man in the blue Hawaiian shorts – the man who, by almost all accounts, was left to pay the bar tab and was publically humbled by Green and who almost universally presents as the most the aggressive of the young men. And one witness – Dennis James – adamantly fixed responsibility on Sokolov. His evidence almost certainly reflects his personal conviction in the truth of this identification. It is not, however, evidence on which I can confidently rely. James had just witnessed a grievous, random assault by complete strangers on one of his best friends. He was admittedly frightened for his own safety. He had his back to the others and was walking away when he momentarily turned his head and caught sight of the initial blow. It is not unfair to say that James, like any right-minded person, wanted to see the fleeing assailants brought to justice. Two men only were returned to the scene and both, he says, were among those five who attacked his friend. Both defendants were under arrest when he observed them. Both defendants were in police cruisers in his immediate proximity as he told the police that “one of the guys” involved in the assault punched his friend Brown. Yet James at no time pointed out, by either words or gesture, Sokolov as the man who had laid out his friend. It is difficult to conceive of James not identifying Sokolov in these circumstances if he was indeed the man who threw the first punch. James’ omission amounts to a damaging prior inconsistent statement. I simply cannot find that Sokolov threw the punch that felled Kevin Brown. Nor is there any evidence that Xhaferi launched this initial blow.

- [95]** The circumstances in which James first observed both defendants after the assault are shared by all the other Crown witnesses who purport to make any identification of the assailants. There was no line-up or photographic array. Instead the two defendants were effectively paraded before the potential witnesses while in police custody. This procedure, while not intentional, can only erode confidence in the reliability of any of the eyewitness identification evidence: see *R. v. Smierciak* (1946), 87 C.C.C. 175 (Ont. C.A.). This is particularly the case where, as here, all of the Crown witnesses had opportunities to see the defendants over the course of the previous hour or so. They may well have recognized the defendants as the men they had seen in earlier encounters that evening and, given the concatenation of events, naturally inferred that the same persons were involved in the assault on Brown. More worrisome, the witnesses' physical descriptions of the two defendants may well have been influenced, if unconsciously, by their extended observation of them while in police detention. At least three Crown witnesses – Kinney, Green and Levy – experienced an additional period of close exposure to Sokolov on Roehampton. Put rhetorically, whom were the witnesses identifying: the men they had seen assaulting Brown or the men who were subsequently apprehended and detained?
- [96]** The risk of misidentification is exacerbated by the physical and sartorial similarity of the young men. All were about 20 to 24 years of age. All were described as looking Eastern European and clean-shaven. All were dressed in casual summer clothes that appear almost interchangeable: shorts, t-shirts, tank tops and, in at least several cases, flip-flops. Other than the man in blue Hawaiian shorts, none of the young men wore distinctive clothing. While the person identified as Sokolov was typically

described as blonde or as having dyed blonde hair, a similar hair colouration was assigned by several Crown witnesses to at least one other member of the group. The man identified as Xhaferi was most often described as having hair that was several inches long; not one witness captured the very close buzz-cut displayed in the police photographs. And no one appears to have recognized that Xhaferi wore Capri pants that almost reached his ankles, describing him instead as wearing shorts that, depending on the witness, hovered at or just below his knees.

- [97]** To add to the reliability concerns, I have difficulty accepting that any of the non-defendant witnesses other than James and Fallhapur had a clear sightline on the assault. While some testified their view was unobstructed, this claim runs afoul of the evidence bearing on the physical and social realities of that part of Yonge Street at that hour. Tenaglia, for example, was across the street with two rows of parked cars, passing automobile and pedestrian traffic and the hot dog stand between his position and Brown's body. Further, he estimated he was only 60 feet from the incident when precise police measurements clock the observational gulf at two and half times that distance. While there was undoubtedly considerable artificial illumination, the opportunity to observe can only have been further compromised by the fact that the events occurred in the middle of the night. While it may be of only tenuous probative value, I have earlier noted that it is extremely difficult to make out the facial features of persons standing in front of the Country Style coffee shop in police photographs taken from the witnesses' vantage points even in the middle of a clear day.

- [98]** What then of the evidence referable to Sokolov's and Xhaferi's involvement in the kicking or stomping of Brown? The defendants, on Sokolov's evidence alone, were part of the group in the immediate proximity of the complainant. If, of course, all of the members of that group joined in pummeling Brown the defendants would share culpability for the aggravated assault. The evidence, however, is divided as to the number of participants. James, Green, Tenaglia and Kempston each testified that Brown was kicked by all of the members of the group. On the other hand, Kinney and Fallhapur saw only three of the larger group participate in the attack. (Fallhapur, when pushed hard in cross-examination, allowed for the almost theoretical possibility of having missed the intervention of an additional attacker but she returned firmly to the number three in re-examination and said she paid attention to what was happening.)
- [99]** James, it may be recalled, initially told the police that only one man – “the one with the long hair [and] the beer bottle” – did the stomping. And Green, I find, was a particularly unreliable witness in view of his patent efforts to minimize his own involvement in the earlier fracas, the repeated inconsistencies between his evidence and that of several of other and less directly involved Crown witnesses and his recantation of his earlier admission of guilt which, of course, places him in the unenviable position of lying either before this court or the one that accepted his plea. In the end, I cannot find that all the members of the group confronting the two black men participated in the kicking that wreaked such terrible havoc on Brown.
- [100]** The evidence tending to individualize the participants in the assault is no more consistent or compelling. Fallhapur was unable to identify or

helpfully describe any of the young men who kicked Brown. The other five witnesses of the assault identified Sokolov and Xhaferi, or persons who bear a resemblance to them, as among the kickers, but the quality of their evidence is hardly free of concern.

[101] I have already mentioned some of those concerns that attach to James' testimony. Further, he testified that "the one with the long hair [and] the beer bottle" was not one of those who were arrested. Green says that Sokolov was the first person to kick Brown, but this directly contradicts the evidence of James and other witnesses and seems inconsistent with his own inability to say who threw the initial punch. Kinney attributes the punch and the first kick to the man in blue Hawaiian shorts. Xhaferi and Sokolov, he says, were the two other kickers. I have already detailed the discrepancies between Kinney's description of Xhaferi and police photographs of this defendant. His description of the man he identifies as Sokolov is much closer to that revealed in similarly timely photographs, but there is one conspicuously errant detail. While Kinney describes the third kicker as having hair that extends below his ears the photos of Sokolov make abundantly clear that his hair never reaches the top of his ears. Whomever the blonde man with hair over his ears is, he does not appear to be Sokolov.

[102] In describing the assault, Tenaglia only particularized the man in the blue Hawaiian shorts. He could not say what specifically the others did. When he first saw Sokolov being escorted back to the scene he identified him to the police as the man who had struck him with the sign, not as one of the kickers. Kempston, too, could not say what any particular assailant did. He initially identified one of the kickers as the person who, he says, swung the sign at Tenaglia (that is, Sokolov), but in cross-

examination could not “say for sure” that this man was one of the kickers. Further, he testified he never saw this man again after the assault, despite being on scene when Sokolov was walked back by Kinney and Green. Kempston also swore that he had never previously seen the man at the wheel of the Mercedes, thus eliminating Xhaferi as one the kickers he had observed.

[103] No collection of testimonial evidence, particularly that detailing tumultuous events, is a perfect record of what occurred. In some cases, the evidence of a particular witness is patently trustworthy and can therefore be relied upon to resolve inter-witness inconsistencies. This is not that case. The evidence purporting to identify the defendants as participants in the kicking is simply too fragile – both because of its particular features and the general concerns I have earlier canvassed – to allow me to properly satisfy myself that Sokolov and Xhaferi were among those who pummeled Brown while he lay on the ground.

[104] That, however, hardly ends the matter. There remains the question of whether the defendants, pursuant to the doctrine of party liability set out in sub.-ss. 21(1)(b) and (c) of the Code, aided or abetted those who did actively assault Kevin Brown. Even if Sokolov and Xhaferi did not punch or kick the complainant, there is considerable evidence that the group of young men surrounded Brown and James, the suggestion being that all the members of the group joined in a monolithic effort to encircle the two young black men. The evidence, however, is not entirely uniform in this regard. The nature of the interaction, as described by James as well as Sokolov, involves an increasingly heated and dynamic conversation. Kinney testified that the exchange, at least initially, went “both ways”. And Fallhapur says that all of the men appeared to be

fighting each other. I note, as well, that the encircling configuration is not completely consistent with James' evidence as he does not speak of having to squeeze through the group of men when he begins to make his departure just before Brown is struck. On its own, I do not find compelling the fact that the group of men formed a loose conglomeration around Brown and James.

[105] What other evidence supports the notion that Sokolov or Xhaferi did something for the purpose of aiding the principals, the kickers, or otherwise encourage them? What was their role? Sokolov testified that he had tried to dissuade the most belligerent member of his group and that Xhaferi had tried to physically separate the potential combatants. There is some external support for these efforts at intervention, particularly in the evidence of Kinney, although the identification of the interveners, if indeed there was more than one, is far from clear. I find, however, that there is enough to extend, like Sokolov's otherwise unexplained injuries, at least a veneer of generalized confirmation to the defendant Sokolov's account. It also provides some explanation for why he and Xhaferi are part of a group that, from a more remote perspective, would appear to be surrounding rather than merely engaging James and Brown. While the configuration of the men is open to a more sinister interpretation, it is also consistent with the more benign construction set out in Sokolov's evidence. On his account, which I find has some support, Sokolov's conduct does not amount to aiding and abetting.

[106] For similar reasons, I do not view Xhaferi's and Sokolov's flight as indicative of a guilty conscience from which I can infer actual guilt. Unless I first assume guilt, their flight is equally consistent, I find, with an effort to escape the horde of bouncers who were then descending on

them. Sokolov testified to this effect and, in the circumstances, it makes sense.

- [107]** In the end, I find that Sokolov's evidence, while buffeted from many directions, leaves me with a reasonable doubt as to whether he committed, as party or principal, the offence of aggravated assault. In *R. v. J.H.S.*, *supra*, at para. 11, Binnie J., writing for the Supreme Court, commented that,

Of course, some elements of the evidence of an accused may raise a reasonable doubt, even though the bulk of it is rejected. Equally, the jury may simply conclude that they do not know whether to believe the accused's testimony or not. In either circumstance the accused is entitled to an acquittal.

For these reasons, and those I have earlier canvassed pertaining to the evidence of the Crown witnesses, the defendant Sokolov is found not guilty of this offence.

- [108]** Sokolov's account, even if believed, does not necessarily translate into the same result for his co-defendant. On Sokolov's evidence, as I have earlier noted, he did not see Brown kicked as he was then defending himself from the blows raining on his own head. Accordingly, if Xhaferi had kicked Brown he, Sokolov, would not have witnessed it. As Xhaferi did not testify, the source for any reasonable doubt must rest in the evidence of others. Again, the frailties and inconsistencies in the evidence of the Crown witnesses are such as to ground such doubt. Xhaferi's footwear further contributes to my lack of adequate conviction as to his guilt. I have no difficulty inferring that the small bloodstains on Xhaferi's feet resulted from his contact with the blood that flowed from Kevin Brown's injuries. Given the amount of blood and his position in the midst of the altercation, it is not too much of a stretch to comprehend how some blood was transferred to Xhaferi's feet whether

or not he actively participated in the assault on Brown. More importantly, perhaps, is the fact, at least as I find it, that Xhaferi was wearing open-toed flip-flops on August 4th. On Fallhapur's evidence – and she was by far the closest non-participant to the fracas -- the three men who kicked Brown all wore closed shoes, not sandals, thus excluding Xhaferi. I accept her evidence in this regard. It is a small but telling detail. It reinforces my reasonable doubt as to Xhaferi's guilt.

D. CONCLUSION

- [109] In the result, I find both defendants not guilty of the charges upon which they were arraigned.
- [110] I add one concluding comment. My verdict can offer no comfort to Kevin Brown, his family or his friends. A young man was senselessly beaten and suffered terrible injuries. There is a natural inclination to want to see someone punished for this horrible injustice. I share this sentiment but I am also aware that one cannot remedy one injustice by risking another through a wrongful conviction. My sincerest hope is for a full and speedy recovery for Mr. Brown.

Released: March 31, 2009

Signed: Justice Melvyn Green